

CloudShield Security

Azure Private Offer

Quote Number:	Q-78291
Quote Date:	1/20/2025
Quote Expiration Date:	1/27/2025
Proposed By:	Michael Chen

To: TechNova Solutions, Inc.

ORDER FORM

This Order Form ("Order") is entered into by and between CloudShield Security, Inc., a company incorporated under the laws of the State of California, with its principal place of business at 500 Innovation Drive, San Jose, CA 95134, and the customer whose corporate name and details are detailed below (the "Customer") (each, a "Party" and collectively, the "Parties").

This Order is subject to, governed by, and hereby incorporates by reference the terms and, the Master Subscription and Services Agreement No. 72845 dated June 22, 2023, (the "Agreement"). Capitalized terms not defined in this Order shall have the meaning defined in the Agreement.

Customer Information

Customer Billing Name: TechNova Solutions, Inc.

Bill to: 2500 Tech Park Boulevard, Austin, Texas 78701

Customer Billing Name: Sarah Thompson

Customer Billing Email Address: billing@technova.com

Customer Billing Phone: +1 (512) 555-8900

Customer Shipping Address: 2500 Tech Park Boulevard, Austin, Texas 78701

Subscriptions

Subscription Term (months) (unless extended according to the terms of this Order Form): **36.00 months**

Subscription Start Date: 3/1/2025

Subscription End Date: 2/28/2028

Subscription Year	Subscriptions	Start Date	End Date	Order Term (Months)	Monthly / Unit Price **	Quantity of Billable Units***	Total Price
Year 1	CloudShield Enterprise	3/1/2025	2/28/2026	12.00	3.25	180000	USD 7,020,000.00
	Premium Support	3/1/2025	2/28/2026	12.00	22916.67	1	USD 275,000.00
Year 2	CloudShield Enterprise	3/1/2026	2/28/2027	12.00	3.25	195000	USD 7,605,000.00
	Premium Support	3/1/2026	2/28/2027	12.00	22916.67	1	USD 275,000.00
Year 3	CloudShield Enterprise	3/1/2027	2/28/2028	12.00	3.25	210000	USD 8,190,000.00
	Premium Support	3/1/2027	2/28/2028	12.00	22916.67	1	USD 275,000.00

Total Subscription Fee: USD 23,640,000.00

** Pricing listed is in USD. The Monthly/Unit Price shown above has been rounded to two decimal places for display purposes. The totals for this order were calculated using the actual price, rather than the Monthly/Unit Price displayed above, and are the true and binding totals for this order.

*** CloudShield Security reserves the right, following written notice to Customer, to true up the total price of subscriptions described in the table above based on Customer's actual usage, and to charge Customer for such additional usage including a corresponding increase for Premium Support.

Payment Terms

All payments shall be paid to the applicable Azure cloud marketplace. Payment will be made annually (at the beginning of each subscription year) and as agreed between Customer and the cloud marketplace. Payment will be made within forty-five (45) days of Customer's receipt of an invoice. To extent within CloudShield's reasonable control and, to the extent Service Provider is required by Applicable Law to collect taxes for which TechNova Solutions is responsible, CloudShield will separately state on the invoice the amount of taxes and the jurisdiction(s) for which the taxes are being collected.

Notwithstanding the Agreement and/or anything to the contrary, Customer may not terminate this Order for convenience.

Special Terms

1. During each consecutive 12 months of the Subscription Term described in this Order, in addition to CloudShield Enterprise, Customer will be entitled to utilize CloudShield Sensor, up to the Burst Threshold (defined below) at no additional cost. "Burst Threshold" means the following percentage of the quantity of CloudShield Enterprise Billable Units purchased by Customer, taking into account any reductions in CloudShield Enterprise Billable Units due to conversions as described in Section 4 below: (a) during Year 1, up to 38.89%, (b) during Year 2, up to 28.21%, and (c) during Year 3, up to 19.05%; provided that in no event shall the Burst Threshold exceed 280,000 Billable Units during any Subscription Year. CloudShield shall have the right to review Customer's actual Billable Unit usage, and in the event such usage exceeds the Burst Threshold, CloudShield shall have the right to notify Customer in writing of and provide a true-up order for such excess usage (a "Workload True-Up"). Following receipt from CloudShield of a Workload True-Up, Customer agrees to purchase, with respect to the period from the date of the Workload True-Up until the Subscription End Date (the "True-Up Period"), additional Billable Units in an amount equal to the quantity of Billable Units utilized in excess of the amount previously purchased by Customer. Notwithstanding Customer's purchase of additional Billable Units, during the Subscription Term described in this Order, Premium Support shall be capped at fixed rate of \$275,000 per year. During the Subscription Term of this Order, Billable Units shall be calculated according to Exhibit A.

2. Customer shall receive a free trial of CloudShield Code, up to maximum of 4,000 active developers, for 12 months, commencing on March 1, 2025 and ending on February 28, 2026.

3. During the Subscription Term (specified in this Order), Customer may elect to purchase additional Billable Units for its CloudShield Enterprise subscriptions at the incremental tiered Billable Unit rates listed below:
CloudShield Enterprise: 1-210,000 cloud workloads - \$39/workload/year 210,001-320,000 cloud workloads - \$35/workload/year 320,001+ cloud workloads - \$31/workload/year

4. During the Subscription Term of this Order, once per annual term, if requested by Customer, Customer shall have the right to convert Billable Units of CloudShield Enterprise to Billable Units of CloudShield Code based on a ratio of 10 CloudShield Enterprise cloud workloads to 1 CloudShield Code active developers. Provided that upon request for any such conversion, prior to such conversion taking place, the Parties will enter into an

amendment and/or new Order to reflect the revised allocation of Billable Units. For the avoidance of doubt, the conversion rights set forth herein shall not apply to any additional Billable Units available to Customer under the Burst Threshold.

5. If Customer elects to extend or renew its CloudShield Enterprise subscription under this Order, during the first consecutive renewal subscription term (which may be any combination of 12 month term lengths, but shall not exceed, in the aggregate, a total of 36 months), CloudShield will not increase the applicable monthly/unit price per Billable Unit for such CloudShield Enterprise subscription by the lesser of (a) five percent (5%) of the monthly/unit price set forth in this Order, or the (b) the increase, if any, in the CPI (defined below) in effect for the month that is three months before the Subscription End Date. "CPI" means the Consumer Price Index for All Urban Consumers (CPI-U), U.S. City Average, All items, not seasonally adjusted, 1982–1984=100 reference base, published by the United States Department of Labor, Bureau of Labor Statistics.

6. On the first consecutive 36 months renewal, provided that Customer commits to a minimum purchase of 210,000 cloud workloads in the first subscription year, followed by a 5% increase every year of the applicable subscription term, Customer shall have the right to utilize up the lesser of (i) 20% of the amount of CloudShield Enterprise Billable Units purchased by Customer; or (ii) 42,000 CloudShield Enterprise Billable Units.

7. As of the Start Date above, this Order will replace any and all certain order forms previously entered into by CloudShield and Customer (the "Prior Order(s)"). A credit of \$412,583.67 will be due to Customer for unused, prepaid fees from the Prior Order(s). CloudShield will apply such credit to the first invoice for this Order. Notwithstanding the foregoing and/or anything to contrary, the aforementioned credit amount is the applicable credit amount on March 1, 2025 and Customer hereby agrees and understands that if this Order is signed after March 1, 2025, such credit amount shall be adjusted by CloudShield accordingly.

8. The Parties agree to cooperate in good faith and negotiate the terms of the SLA by February 28, 2025 (the "Determination Date"), to be evidenced by a mutually agreeable written amendment to the Agreement or this Order (the "SLA Amendment Date"). In the event the Parties do not enter into an SLA Amendment by the Determination Date, this Order will be deemed amended to remove Premium Support from the entire Subscription Term and Customer will not be charged or will receive a refund, as applicable for the fees corresponding to Premium Support.

Purchase Order Information

Is a Purchase Order (PO) required for the purchase or payment of the subscriptions on this Order Form? **No**

PO Number:

PO Amount: USD 0.00

CloudShield Security, Inc.

Signature

Name: _____

Title: _____

Date: _____

TechNova Solutions, Inc.



Signature

Name: _____

Title: _____

Date: _____

Exhibit A - Billable Unit Definitions

CloudShield Enterprise

- 1 virtual machine = 1 billable unit
- 1 container host = 1 billable unit
- 50 serverless functions = 1 billable unit
- 10 serverless containers = 1 billable unit
- 10 asset metadata = 1 billable unit

CloudShield Code

1 active developer = 10 billable units

CloudShield Sensor

- 1 VM Sensor deployed for 24 hours = 1 billable unit
- 1 Kubernetes Sensor deployed for 24 hours = 1 billable unit
- 10 Serverless Container Sensor deployed for 24 hours = 1 billable unit

CloudShield Data Security

- 100 buckets scanned = 1 billable unit
- 2 PaaS databases scanned = 1 billable unit
- 10 data warehouse tables scanned = 1 billable unit
- 30 non-OS disks scanned = 1 billable unit
- 300 container images stored in the registry scanned = 1 billable unit